define essential commodity as a ‘commodity specified in the Schedule’ and to confer power on the Central government to add or remove any commodity from the Schedule. In the Schedule, all commodities other than drugs and petroleum products were from the agriculture world: fertilizers, foodstuffs, hank-yarn, jute and seeds. Cottonseed was added to the seeds list in 2009.

Food was the main reason why ECA was brought in and sustained over several decades. While the production of agricultural commodities and supply of foodstuffs had increased substantially by this time, the law still held sway.

However, the Government of India resorted to a roundabout way to defang ECA-1955 once food shortages had become a thing of the past and to prevent abuse of the law. In 2002, the Removal of Licencing Requirements, Stock Limits and Movement Restrictions on Specified Foodstuffs Order was issued. It removed all controls on buying, stocking, selling, transporting, distributing, disposing, acquiring, using or consuming of a long list of foodstuffs: wheat, paddy/rice, coarse grains, sugar, edible oilseeds and edible oils. In November 2004, the 1999 order declaring ‘onions’ as an essential commodity was rescinded as well.

However, there is too much vested interest in keeping foodstuffs under control. Policymakers do not want to get on the wrong side of consumers even if that meant hurting farmers’ interests. Any fall in production or rise in prices provided an excuse to reverse the gear. The process of unravelling the liberalization order began in 2006. The 2002 order was first placed in abeyance with regard to wheat and pulses for a period of six months on 29 August 2006. Most of the commodities over which ECA-1955 was rendered inapplicable by the 2002 order were brought back under control by issuing such abeyance orders.

In 2014, the new NDA government decided to bring liberalization back. It consolidated all orders issued earlier under the Foodstuffs Order, 2002,